

		from Montana to Orange County to attend trial. Plaintiff has not shown that these travel costs were reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation. Plaintiff voluntarily chose to retain counsel from Montana but did not necessarily have to do so. The court will exercise its discretion and grant the motion as to these travel costs. Defendant Pansuria shall give notice of this ruling.
2	Carriedo vs. Warden 30-2023-01362615	<u>Motions to Compel Discovery</u> Defendant Wesley Warden's Motion for Order Compelling the Response of Beach Medical Group to Deposition Subpoena for Business Records is taken OFF CALENDAR. Defendant Wesley Warden's Motion for Order Compelling the Response of Kamran Rabbani MD to Subpoena Duces Tecum is GRANTED. Kamran Rabbani MD is ORDERED to serve full, complete, and verified responses and responsive documents to the Deposition Subpoena for Production of Business Records served on July 18, 2024, within 30 days of service of the notice of ruling. <u>Pending Motions</u> Defendant Wesley Warden moves to compel compliance with subpoenas for business records served upon Third-Party Beach Medical Group (Beach Medical) and Third-Party Kamran Rabbani M.D. (Rabbani) <u>Standard to Compel Production of Documents through Subpoena</u> A party wishing to take the oral testimony of a nonparty in a deposition may do so by serving the nonparty with a subpoena a sufficient time in advance to allow the nonparty a reasonable opportunity to travel to the place of deposition. (See Civil Procedure Code, §§ 1985, 1987, 2020.220.)

		The party seeking to take the deposition [of a party or nonparty] may also request that the deponent produce documents at the deposition by including in the notice of deposition a "specification with reasonable particularity of any materials or category of materials, including any electronically stored information, to be produced by the deponent." (Code Civ. Proc., § 2025.220, subd. (a)(4).) Where a party seeks the production of documents at deposition, the party must serve the subpoena a sufficient time in advance to allow the deponent a reasonable opportunity to locate and produce any designated documents. (See Civil Procedure Code, §§ 1985, 1987, 2020.220.) "If a deponent fails . . . to produce any document or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling . . . production." (Code Civ. Proc., § 2025.480, subd. (a).) A party seeking documents from a third-party must also "set forth specific facts showing good cause justifying the discovery sought by the inspection demand" (<i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 223 [applying good cause requirement of Civil Procedure Code section 2031(l) to party seeking documents from third-party], quoting Code Civ. Proc., § 2031, subd. (l).) In order to show "good cause," the burden is on the moving party to make a "fact specific showing of relevance." (<i>Glenfed Develop. Corp. v. Superior Court</i> (1997) 53 Cal.App.4th 1113, 1117.) "[U]nless there is a legitimate privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance." (<i>TBG Ins. Services Corp. v. Superior Court</i> (2002) 96 Cal.App.4th 443, 448.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement. Admissibility is not the test, and it is sufficient if the information sought might reasonably lead to other, admissible evidence." (<i>Glenfed Develop. Corp. v. Superior Court</i>, supra, 53 Cal.App.4th at p. 1117.)
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		Arguments made in the moving papers or in a separate statement are insufficient to satisfy this requirement; good cause must be shown by way of admissible evidence, such as by declaration. (<i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 224.) Once good cause is shown by the moving party, the burden then shifts to the responding party to justify any objections made to requests for production. (See <i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98.) The motion to compel shall also include "a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) The moving party is required to meet and confer with the nonparty, rather than just the opposing party or parties. (See <i>Board of Registered Nursing v. Superior Court of Orange County</i> (2021) 59 Cal.App.5th 1011, 1034 ["If a party is not satisfied with the nonparty's compliance, the party has 60 days in which to meet and confer with the nonparty"].) <u>Subpoenas for Business Records</u> With respect to the subpoena relating to Beach Medical, on November 19, 2024, Defendant filed Defendant Wesley Warden's Notice of Withdrawal and Taking Off-Calendar of the Motion for Order Compelling the Response of Beach Medical Group to Deposition Subpoena for Business Records and the Hearing Scheduled for April 14, 2025. (See ROA #82.) Therefore, the court will take off calendar the motion to compel with respect to Defendant Beach Medical. With respect to the subpoena relating to Rabbani, Defendant shows that on July 18, 2024, Rabbani "was personally served with a subpoena along with the required fee." (Decl. of Jennifer S. Leeper in Supp. of Mot. for an Order Compelling
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		Compliance with Subpoena (Leeper Decl.), ¶ 2, Exh. B.) The subpoena included a demand for Plaintiff's "complete medical records, billing records, and radiology images from the first date of treatment of the present. . . ." (<i>Ibid.</i>) When Defendant did not receive the documents in a timely manner, Defendant's Counsel reminded Rabbani that Defendant had paid the fees to obtain the documents and inquired when the documents would be produced. (See <i>id.</i>, ¶ 3, Exh. A.) However, despite the fact that Rabbani was served with the subpoena and never objected to it nor filed a motion to quash, Rabbani did not produce any of the medical records to Defendant. (See <i>id.</i>, ¶¶ 4-6.) Defendant explained that these records are relevant because Plaintiff alleges multiple injuries and sought treatment from Rabbani. (See <i>id.</i>, ¶ 2.) (fn.1) (fn.1) Here, Defendant did the minimum to set forth specific facts showing good cause justifying the discovery sought, but just barely. The court encourages Defendant, in the future, to be more thorough in meeting the requirements of the Civil Procedure Code. Rabbani has failed to file an opposition or respond to the motion. Thus, Rabbani has waived any arguments regarding the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman's Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion"].) Therefore, the court will grant the motion. Defendant shall give notice of this ruling.
3	Lobaton vs. Swartz & Smidt Associates	<u>Motion to Set Aside Default</u>